

COMMITTEE ON JUDICIARY AND ELECTIONS
SENATE AMENDMENTS TO S.B. 1609
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 16-462, Arizona Revised Statutes, is amended to
3 read:

4 16-462. Form of paper ballot

5 The ballots for a primary election shall be printed with a different
6 color designation for each political party that is included on the ballot.
7 Unless otherwise provided by law, the ballot shall be printed, "official
8 ballot of the _____ party, primary election (date), _____
9 precinct, county (or city or town) of _____, state of Arizona". THE
10 NAME USED TO IDENTIFY EACH POLITICAL PARTY ON THE PRIMARY BALLOT SHALL BE
11 PRESCRIBED BY SECTIONS 16-801 AND 16-802. Below the heading shall be
12 placed the title of each office to be voted for, and an instruction to the
13 voter as to how many are to be voted for for the particular office, thus:
14 "vote for not more than _____" (insert the number to be elected),
15 under which shall be placed alphabetically and alternated, as provided by
16 law, the names of all the party's candidates to be voted for in each
17 precinct of the county or precinct or ward of the city or town for whom
18 nomination papers have been filed for such office, leaving as many blank
19 lines as there are offices under that title to be filled, followed by a
20 place for the voter to make a mark to indicate the voter's choice either
21 to the right or the left of the candidate's name, and of the blank line.
22 Double or more columns may be arranged on the ballot. In other respects
23 the ballot shall conform as nearly as possible to the ballot prescribed
24 for general elections.

1 Sec. 2. Section 16-502, Arizona Revised Statutes, is amended to
2 read:

3 16-502. Form and contents of ballot

4 A. Ballots shall be printed with black ink on white paper of
5 sufficient thickness to prevent the printing thereon from being
6 discernible from the back, and the same type shall be used for the names
7 of all candidates. The ballots shall be headed "official ballot" in
8 bold-faced plain letters, with a heavy rule above and below the heading.
9 Immediately below shall be placed the words "type of election, (date of
10 election)" and the name of the county and state in which the election is
11 held. The name or number of the precinct in which the election is held
12 shall be placed on the ballot in a uniform location for all ballots. No
13 other matter shall be placed or printed at the head of any ballot.
14 Instructions to the voter on marking the ballot may be printed below the
15 heading as follows:

16 1. Put a mark according to the instructions next to the
17 name of each candidate for each office for whom you wish to
18 vote.

19 2. If you wish to vote for a person whose name is not
20 printed on the ballot, write such name in the blank space
21 provided on the ballot and put a mark according to the
22 instructions next to the name so written.

23 3. Put a mark according to the instructions next to the
24 word "yes" or "for" for each proposition or question you wish
25 to be adopted. Put a mark according to the instructions next
26 to the word "no" or "against" for each proposition or question
27 you wish not to be adopted.

28 B. Immediately below the ballot instructions shall be placed the
29 following:

30 Section One
31 Partisan Ballot

32 C. Immediately below the heading for section one there shall be
33 placed in columns the names of the candidates of the several political
34 parties. Next to each candidate's name there shall be printed in
35 bold-faced letters the name of the political party, **WHICH SHALL BE**
36 **PRESCRIBED BY SECTIONS 16-801 AND 16-802.** At the head of each column
37 shall be printed the names of the offices to be filled with the name of
38 each office being of uniform type size. At the head of each column shall
39 be printed in the following order the names of candidates for:

40 1. Presidential electors, which shall be in a list and next to the
41 list shall be printed in bold type the surname of the presidential
42 candidate, and the surname of the vice presidential candidate who is
43 seeking election jointly with the presidential candidate shall be listed
44 directly below the name of the presidential candidate. The indicator for
45 the selection of the presidential and vice presidential candidates shall
46 be directly next to the surname of the presidential candidate, and one
47 mark directly next to a presidential candidate's surname shall be counted

1 as a vote for each elector in the list next to the presidential and vice
2 presidential candidates.

3 2. United States senator.

4 3. Representatives in Congress.

5 4. The several state offices.

6 5. The several county and precinct offices.

7 D. The names of candidates for the offices of state senator and
8 state representative along with the district number shall be placed within
9 the heading of each column to the right of the office name for state
10 offices and immediately below the candidates for the office of governor.
11 The number of the supervisorial district of which a candidate is a nominee
12 shall be printed within the heading of each column to the right of the
13 name of the office.

14 E. The lists of the candidates of the several parties shall be
15 arranged with the names of the parties in descending order according to
16 the votes cast for governor for that county in the most recent general
17 election for the office of governor, commencing with the left-hand column.
18 In the case of political parties that did not have candidates on the
19 ballot in the last general election, such parties shall be listed in
20 alphabetical order below the parties that did have candidates on the
21 ballot in the last general election. The names of all candidates
22 nominated under section 16-341 shall be placed in a single column below
23 that of the recognized parties. Next to the name of each candidate, in
24 parentheses, shall be printed a three-letter abbreviation that is taken
25 from the three words prescribed in the candidate's certificate of
26 nomination.

27 F. Immediately below the designation of the office to be voted for
28 shall appear the words: "Vote for not more than _____" (insert the
29 number to be elected).

30 G. In each column at the right or left of the name of each
31 candidate and on the same line there shall be a place for the voter to put
32 a mark. Below the name of the last named candidate for each office there
33 shall be as many blank lines as there are offices of the same title to be
34 filled, with a place for the voter to put a mark. On the blank line the
35 voter may write the name of any person for whom the voter desires to vote
36 whose name is not printed, and next to the name so written the voter shall
37 designate his choice by a mark as in the case of printed names.

38 H. When there are two or more candidates of the same political
39 party for the same office, or more than one candidate for a judicial
40 office, the names of all such candidates shall be so alternated on the
41 ballots used in each election district that the name of each candidate
42 shall appear substantially an equal number of times in each possible
43 location. If there are fewer or the same number of candidates seeking
44 office than the number to be elected, the rotation of names is not
45 required and the names shall be placed in alphabetical order.

1 I. Immediately below section one of the ballot shall be placed the
2 following:

3 Section Two
4 Nonpartisan Ballot

5 J. Immediately below the heading for section two shall be placed
6 the names of the candidates for justices of the supreme court, judges of
7 the court of appeals, judges of the superior court standing for retention
8 or rejection pursuant to article VI, section 38, Constitution of Arizona,
9 judges of the superior court standing for election pursuant to article VI,
10 section 12, Constitution of Arizona, school district officials and other
11 nonpartisan officials in a column or in columns without partisan or other
12 designation except the title of office in an order determined by the
13 officer in charge of the election.

14 K. Immediately below the offices listed in subsection J of this
15 section, the ballot shall contain a separate heading of any nonpartisan
16 office for a vacant unexpired term and shall include the expiration date
17 of the term of the vacated office.

18 L. All proposed constitutional amendments and other propositions or
19 questions to be submitted to the voters shall be printed immediately below
20 the names of candidates for nonpartisan positions in such order as the
21 secretary of state, or if a city or town election, the city or town clerk,
22 designates. Placement of county and local charter amendments,
23 propositions or questions shall be determined by the officer in charge of
24 the election. Except as provided by section 19-125, each proposition or
25 question shall be followed by the words "yes" and "no" or "for _____" and
26 "against _____" as the nature of the proposition or question requires,
27 and at the right or left of and next to each of such words shall be a
28 place for the voter to put a mark according to the instructions that is
29 similar in size to those places appearing opposite the names of the
30 candidates, in which the voter may indicate his vote for or against such
31 proposition or question by a mark as defined in section 16-400.

32 M. Instead of printing the official and descriptive titles or the
33 full text of each measure or question on the official ballot, the officer
34 in charge of elections may print phrases on the official ballot that
35 contain all of the following:

36 1. The number of the measure in reverse type and at least twelve
37 point type.

38 2. The designation of the measure as prescribed by section 19-125,
39 subsection C or as a question, proposition or charter amendment, followed
40 by the words "relating to..." and inserting the subject.

41 3. Either the statement prescribed by section 19-125, subsection D
42 that describes the effects of a "yes" vote and a "no" vote or, for other
43 measures, the text of the question or proposition.

44 4. The words "yes" and "no" or "for" and "against", as may be
45 appropriate and a place for the voter to put a mark.

1 N. For any ballot printed pursuant to subsection M of this section,
2 the instructions on the official ballot shall direct the voter to the full
3 text of the official and descriptive titles and the questions and
4 propositions as printed on the sample ballot and posted in the polling
5 place.

6 Sec. 3. Section 16-801, Arizona Revised Statutes, is amended to
7 read:

8 16-801. Representation of new party on ballot at primary and
9 general elections

10 A. A new political party may become eligible for recognition and
11 shall be represented by an official party ballot at the next ensuing
12 regular primary election and accorded a column on the official ballot at
13 the succeeding general election on filing with the secretary of state a
14 petition signed by a number of qualified electors equal to not less than
15 one and one-third ~~per cent~~ PERCENT of the total votes cast for governor at
16 the last preceding general election at which a governor was elected. From
17 this number, at least five different counties shall be included as the
18 county of registration among the required total of qualified electors and
19 at least ten ~~per cent~~ PERCENT of the required total of qualified electors
20 shall be registered in counties with populations of less than five hundred
21 thousand persons. The petition shall:

22 1. Be verified by the affidavit of ten qualified electors of the
23 state, asking that the signers thereof be recognized as a new political
24 party. The status as qualified electors of the signers of the affidavit
25 shall be certified by the county recorder of the county in which they
26 reside.

27 2. Be in substantially the form prescribed by section 16-315.

28 3. Be captioned "petition for political party recognition".

29 4. INCLUDE THE PROPOSED POLITICAL PARTY NAME, WHICH SHALL BE
30 DISTINGUISHABLE FROM THE NAME OF ALL EXISTING RECOGNIZED POLITICAL PARTIES
31 IN THIS STATE AND WHICH MAY NOT CONTAIN THE WORD OR PHRASE "UNAFFILIATED",
32 "PARTY NOT DESIGNATED", "NO PARTY", "NO PREFERENCE", "INDEPENDENT" OR
33 "DECLINE TO STATE" OR ANY VARIATION OF THOSE WORDS OR PHRASES.

34 B. Notwithstanding any other law, on recognition as a political
35 party that is represented by an official party ballot at the primary
36 election and accorded a ballot column at the succeeding general election,
37 a new political party is entitled to representation as a political party
38 on the official ballot through the next two regularly scheduled general
39 elections for federal office immediately following recognition of the
40 political party. After these two regularly scheduled general elections
41 for federal office, the political party is ineligible for further
42 representation on the ballot unless it qualifies for continued
43 representation on the ballot as prescribed in section 16-804 or it files a
44 new petition for recognition as a new political party pursuant to this
45 section and section 16-803.

1 C. FOR ALL ELECTION ADMINISTRATION PURPOSES, THE SECRETARY OF STATE
2 AND ALL OTHER ELECTION OFFICIALS SHALL RECOGNIZE A POLITICAL PARTY BY THE
3 NAME LISTED ON THE PETITION FOR POLITICAL PARTY RECOGNITION UNLESS THE
4 POLITICAL PARTY SUBSEQUENTLY FILES A LEGALLY SUFFICIENT NEW PETITION FOR
5 POLITICAL PARTY RECOGNITION PURSUANT TO THIS SECTION OR SECTION 16-802.

6 Sec. 4. Section 16-802, Arizona Revised Statutes, is amended to
7 read:

8 16-802. Representation of new party on ballot for county or
9 municipal election

10 A new political party shall become eligible for recognition, shall
11 be represented by an official party ballot at the next ensuing primary
12 election of a county, city or town and shall be placed on the official
13 ballot at the succeeding regular election on filing with the officer in
14 charge of elections of the county or the city or town clerk, as the case
15 may be, a petition THAT IS signed by a number of qualified electors equal
16 to not less than two percent of the votes cast for county attorney in the
17 case of a county petition or for mayor in the case of a city or town
18 petition AND THAT OTHERWISE COMPLIES WITH SECTION 16-801. The county
19 recorder or the city or town clerk, as applicable, shall review the
20 petitions in the same manner prescribed by section 16-803, including the
21 selection of a random sample of twenty percent of the total signatures
22 eligible for verification, which shall be individually verified and
23 certified, and shall perform a calculation and projection of the total
24 number of valid signatures and make a determination whether the party
25 shall be recognized as prescribed by section 16-803, subsection I.

26 Sec. 5. Intent and purpose

27 The legislature intends by this act to reduce voter confusion,
28 prevent erroneous political party affiliation and support the orderly
29 administration of elections.

30 Sec. 6. Retroactivity; notice; compliance

31 A. This act applies retroactively to from and after December 31,
32 2024. Within five days after the effective date of this act, the
33 secretary of state shall provide notice of this act to all political
34 parties that are recognized pursuant to section 16-801 or 16-802, Arizona
35 Revised Statutes, as amended by this act.

36 B. Any political party that is not in compliance with this act
37 shall come into compliance within ten days after the effective date of
38 this act.

1 <<Sec. 7. Severability
2 [If a provision of this act or its application to any person or
3 circumstance is held invalid, the invalidity does not affect other
4 provisions or applications of the act that can be given effect without the
5 invalid provision or application, and to this end the provisions of this
6 act are severable.]>>

7 Sec. 8. Emergency
8 This act is an emergency measure that is necessary to preserve the
9 public peace, health or safety and is operative immediately as provided by
10 law.

11 Enroll and engross to conform
12 Amend title to conform

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